
West Earlham Infants School Visit Report**Audit Date: 26/02/20****Report: Year 2 visit 2****DPE: Stuart Lee****School member: Beccie Paterson**

1. Visit details

In addition to the audit walk, key GDPR documentation was reviewed and DPE best practice areas were discussed/demonstrated with the school. The best practice areas and checklists can be used to support with future visits.

- The school has started the process of moving to cloud solutions with all staff now having chrome books. We discussed the risks and documenting (risk assessment) and planning for this. This can also be included in the Record of Processing tool. A workshop has been arranged for: Wednesday 20 May St Quintin Room in Sprowston Diamond Centre, Norwich which Beccie will attend. The school downloaded the work away from school policy document and Governor hub: annual review of school data and safe data destruction checklist and guidance for governors and clerks.

2. Audit walk findings

Beccie confirmed that previous visit actions have been completed other than; confidential waste sacks where the school are currently investigating options and CCTV hard drive on display and easily accessible – the school will continue to review regarding adding the base unit to a secure cabinet.

The school are currently completing a data cleanse of the website, network and displays around school to remove outdated information. Beccie is to complete an afterschool walk. The DPE best practice guide was distributed and a mini school walk was completed. Details below:

Reception (visitor area)

Laptop on open display where we were able to access all staff files.

- **Action point:** Secure in lockable cabinet; remove access via laptop to 'whole staff' area and any other sensitive data.

Staff photo and full name

- **Advisory:** As the photos are in an open area the school should consider obtaining consent.

Visitor signing in system

School uses digigreet electronic signing in system.

- **Advisory:** Add information at reception to inform visitors where they can access the school's privacy statement from i.e. school website.

Nursery

Access is via keycode entry. One classroom had student photos with full names on display and one classroom had photo and forename.

- **Action point:** Minimise data that contained full name to forename only; Beccie to check against school consent and ensure consent aligns;

Accident book and class lists with full names on open display. As this was during the day it was acceptable;

- **Advisory:** Beccie to check with staff members where this information is stored and also check when completing an internal afterschool walk that end of day routines include storing adequately away.

3. Compliance actions that should now be completed

Initial documents:

- Privacy Notice
- GDPR Policy
- Data Breach Procedure.
- SAR procedure
- Photo and Video consent

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. If using GDPRiS this should also be kept updated. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data breach procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

3.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist and guidance for governors and clerks;
- IRMS toolkit: [https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016 IRMS Toolkit for Schools v5 Master.pdf](https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf)
- DfE toolkit
[https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data Protection Toolkit for Schools OpenBeta.pdf](https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf) (Annex 5,1)

3.2. Staff training

GDPR training should be completed and documented. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

3.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

3.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

4. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

5. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

6. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

6.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

7. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>